

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 12/18/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED.** Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C24-01590
CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO
*HEARING ON MOTION FOR DISCOVERY COMPEL PROD OF SELLER DISCLOSURE AND FURTHER ANSWERS FROM DEFENDANT

FILED BY: CLANCY, TIMOTHY F.

TENTATIVE RULING:

Plaintiff's motion to compel is GRANTED IN PART and DENIED IN PART. Plaintiff's motion to compel further answers regarding the seller's disclosures from Defendant Jurado is GRANTED. Defendant Jurado is to provide further answers only on the issue of the seller's disclosure, specifically: why the disclosures cannot be produced, including whether they have been lost or destroyed, and any contact information for the person or entity who Defendant Jurado believes may have possession of the records. Defendant's response is due by January 30, 2026.

Plaintiff's motion to compel Request for Documents, specifically request No. 1, seller's transfer disclosure statement(s) and seller's questionnaire(s) is DENIED.

Plaintiff's request for sanctions is DENIED. Defendant's request for sanctions is also DENIED.

Under Code of Civil Procedure (C.C.P.) section 2025.480(a), "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (*Id.*)

The court finds that Plaintiff's request for seller's transfer disclosure and seller's questionnaire(s) is relevant to the action and the request was not vague, ambiguous, or overbroad as Defendant maintained in their original response.

At Defendant Jurado's March 27, 2025, deposition he stated that he received disclosures related to the property from the seller, copies of which he had in a file at home. Following Defendant Jurado's deposition he produced documents exceeding 400 pages including disclosures such as a 42-page document entitled Natural Hazard Disclosure Statement and Disclosure Report. Defendant Jurado maintains that he has no additional documents to produce. However, Defendant Jurado also provided to Plaintiff, a declaration by his wife, Paula Jurado, who is not a party to this action, stating that she attempted to locate the Transfer Disclosure Statement and a Seller Property Questionnaire by searching with her husband, Defendant Jurado, through their personal possessions, and that she specifically attempted to contact the title company, escrow administrator and the previous real estate agent in an effort to obtain these documents to no avail.

"A representation of inability to comply with the particular demand for inspection...shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category ...has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." (See California C.C.P. §2031.230.) While a declaration with relevant information consistent with C.C.P. §2031.230 was provided to Plaintiff by Defendant Jurado, it was a declaration by Ms. Jurado, who is not a party, and not Defendant Jurado regarding an inability to now comply with providing the requested documents, which may also be inconsistent with, or at least requires clarification, as to his statement in his deposition.

At this juncture, without clarity, this information appears to be inconsistent with Defendant Jurado's testimony at the deposition. As such the court finds good cause for the motion to compel and is ordering Defendant Jurado to provide further answers only on the issue of the seller's disclosures. (C.C.P. § 2025(a), (b)(1).) Specifically, why the disclosures cannot be produced, including whether they have been lost or destroyed, and any contact information for the person or entity who Defendant Jurado believes may have possession of the records. If Defendant Jurado does not have personal

knowledge sufficient to respond he shall state as much but shall also make a reasonable and good faith effort to obtain the information by inquiring of others. (See for example, C.C.P. §2030.220(c) and California Evidence Code §702).

Defendant Jurado's further responses are due to Plaintiff by January 30, 2026.

"The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions." (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

Under the circumstances, the court finds it would be unjust to grant sanctions to either party. Both parties' requests for sanctions are therefore denied.

2. 9:00 AM CASE NUMBER: C23-02761

CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DISCOVERY REQUESTS
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.**

TENTATIVE RULING:

"The superior court possesses considerable discretion to restrict burdensome or duplicative discovery." (*Carter v. Superior Court* (1990) 218 Cal. App. 3d 994, 997-998.)

Under the Civil Discovery Act of 1986,

the Legislature has provided that although a party "may obtain discovery by one or more" of several methods, "[t]he court shall restrict the frequency or extent of use of these discovery methods if it determines either of the following: (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive. (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case" (§ 2019, subd. (b).) In addition, section 2025, subdivision (i), authorizes the court, "for good cause shown" to protect a party from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense," by ordering that "all or certain of the writings or tangible things designated in the deposition notice not be produced, inspected, or copied."

(*Carter surpa*, pp. 997-998.)

Here, the court does not find the requested discovery to be burdensome or duplicative. First there are multiple parties all with different roles and different alleged conduct and it is reasonable to anticipate that their responses to the same discovery requests may be different. Furthermore, to the extent that their responses would be identical that would cut against an argument that it is unduly burdensome to comply as counsel would be positioned to merely provide identical responses.

Gary Johnson, Kevin Johnson, and Johnson & Johnson Consulting, LLC ("Defendants/Cross-Complainants") have asserted that they have now served substantive, code compliant, and verified supplemental responses to the eleven sets of written discovery demands at issue here, and they agreed to produce all responsive documents in their possession, custody or control. However, the Defendants/Cross-Complainants also maintain that several documents cannot be produced until Plaintiff/Cross-Defendant Sunpoint ("Plaintiff/Cross-Defendant") produces their own responses to Defendant/Cross-Complainant's motion to compel, asserting that most of the documents are internal to Plaintiff/Cross-Defendant. Plaintiff/Cross-Defendant also asserts that not all documents have been